



Assumption of Risk & Release

Full Name _____

Mailing Address _____

City, ST, Zip _____

Email _____ Phone _____

Emergency Contact Name and Phone Number _____

Anytime Fitness® center located at _____ ("CLUB").

Assumption of Risk and Release:

I understand the risk of injury from CLUB activities including my participation in physical fitness testing by personnel as a part of the civil service testing conducted on behalf of PUBLIC SAFETY TESTING, INC., AN "S" CORPORATION INCORPORATED IN THE STATE OF WASHINGTON, (hereinafter "PST") and using any CLUB equipment is significant, including the potential for permanent paralysis and death, I KNOWINGLY AND FREELY ASSUME ALL SUCH RISKS, both known and unknown. I acknowledge that this is a FITNESS CENTER and I assume all risks associated with using exercise equipment, performing any fitness assessment movements, techniques or exercises, and exercising with or without the aid and presence of CLUB staff on the premises. I further assume all risks associated with the PST physical assessment process. I understand that Anytime Fitness® is a trademark of Anytime Fitness Franchisor, LLC that has been licensed to this CLUB and that this CLUB is independently owned and operated by _____.

I HEREBY RELEASE, INDEMNIFY, AND HOLD HARMLESS ANYTIME FITNESS FRANCHISOR, LLC, PST AND THE OWNERS OF THIS CLUB, as well as all sponsors and advertisers, and all owners and lessors of the premises of such clubs, and their respective officers, affiliates, agents and employees WITH RESPECT TO ANY AND ALL INJURY, DISABILITY, DEATH, LOSS OR DAMAGE to person or property that may relate to, arise out of, or in connection with my performance of any fitness assessment movements including PST physical assessment, techniques or exercises, my use of any of the equipment or the facilities of the CLUB, or any incident that occurs while using such facilities. I expressly agree that this release is intended to be as broad and inclusive as permitted by applicable law and if a portion of this release is held invalid, the balance shall remain in full force and effect. This release shall apply to my heirs, assigns, personal representatives and any other next of kin. I understand that the CLUB and PST are relying on this release in agreeing to provide fitness assessment services to me. I HAVE READ THE RELEASE OF LIABILITY AND ASSUMPTIONS OF RISK AGREEMENT, FULLY UNDERSTAND ITS TERMS AND THAT I HAVE GIVEN UP SUBSTANTIAL RIGHTS BY SIGNING IT, AND SIGN IT FREELY AND VOLUNTARILY WITHOUT ANY INDUCEMENT.

Signature _____ Date _____